Concept Review (Ch.3) Dispute Resolution



- Three categories of ADR?
- Criminal standard of proof - BARD
- Civil standard of proof - BOP
- Lawsuit procedure

(time limits, jurisdiction, notice of civil claim, response & counterclaim, default judgment, examination for discovery, discovery of documents)

- Post-trial execution of judgments

(registration against land, garnishing order, examination in aid of execution, asset seizure)

- Administrative Law

(private citizen versus government body; rules of natural justice)

CIVIL WRONGS



Classification of Civil Wrongs

- Tort – e.g. negligence, defamation, assault, trespass etc.
- Breach of contract
- Statutory wrong – e.g. breach Residential Tenancies Act etc.
- Equitable wrong – the catch-all – e.g. fraud etc.



Business Law in Canada

Chapter 4

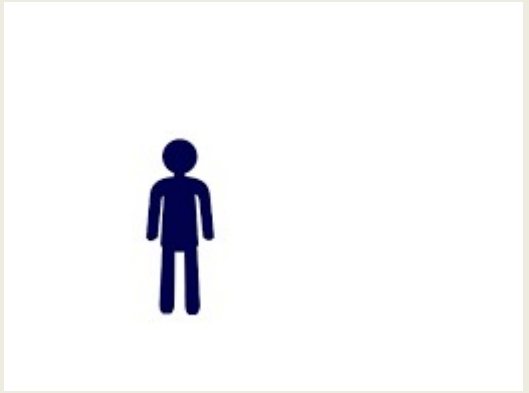
Intentional Torts



What Is a Tort?

- A civil wrong
- An action that causes harm to another
  - Can be deliberate, intentional action, or
  - Can be accidental, careless, un-intentional action
- While a crime is a wrong and an affront to society

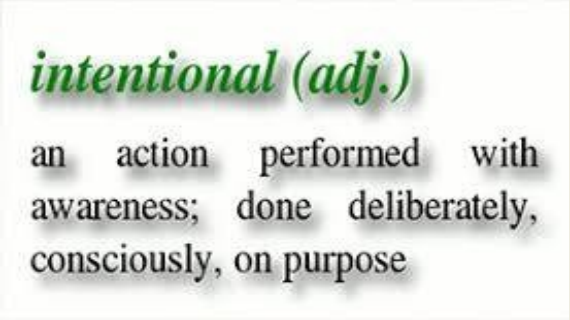




- as a whole, a tort is a wrong to an individual
- Some acts may be both crimes & torts

Classifications of Tort

- Intentional
  - deliberate acts that cause injury or loss



- Un-intentional
  - Careless or accidental acts that cause injury or loss
    - "negligence"



Intentional Torts

- Some Examples
  - Trespass to Person = Assault and Battery
  - Trespass to Land
  - False Imprisonment
  - Private Nuisance
  - Defamation
  - Product Defamation = Injurious Falsehood

- Courts may sometimes award punitive damages $$$ in addition to general $$ & special $ damages

- Vicarious liability – liability without personal fault
  - an employer can be held liable for employee's torts committed in the course of employment

Trespass to Person: Assault & Battery



- Intentional physical interference with another person
- Assault and Battery
  - Assault - where there is fear of imminent contact
    - Protects our right to ‘peace of mind’ & includes threats
  - Battery – deliberate physical contact without consent
    - Protects our body integrity
    - Our right to refuse consent to contact
  - Does <u>not</u> have to be <u>harmful</u> contact





We have the right to refuse medical

- Treatment – ‘informed consent’

- Defences
  - 1. Accidental contact – no intention – not deliberate
  - 2. Consent (informed) – to contact – so then it’s okay…
  - 3. Self-defence (reasonable force) is okay….

Trespass to Land

- Deliberately going onto someone's land without the owner's permission or lawful right to go there.

- Do <u>not</u> have to prove <u>harm</u>
  - Merely "bruising one's grass" is enough
  - 'Actionable without proof of damage'



  - Do not have to prove he intended to trespass
    - Ignorance of the property line is no excuse!

- Sometimes permission or authority is implied
  - a business impliedly authorizes customers to enter
  - by virtue of one's job (e.g. postman, meter reader) authority is implied

- Occupier owes only minimal duty to trespasser
- unless trespasser is a minor (under 19 yrs. Old)
  - Lack of control is a defense for the parents!



False Imprisonment

- The unlawful and intentional restraint of a person against their will
- The person doing the restraining has no lawful justification or authority to do so.
- Restraint can be physical or even psychological
- Restraint may only be lawfully justified if the person has done something they can be arrested for.
  - Like shoplifting…

- Citizen's arrest s. 494 Criminal Co



Nuisance



- Public nuisance affects public in general usually public land. Usually gov't brings action
- Private nuisance occurs when a person uses their property in a way that interferes with another person's use and enjoyment of their property
- Usually it is with next-door neighbours
- "Strict Liability" for inherently dangerous situations or products





Defamation

- A published false statement about someone that is to his or her detriment
  - A lie that damages someone's reputation
- must be published or broadcast – communicated to 3rd party
- Spoken defamation = Slander
- Written defamation = Libel
- C[illegible]n in cyberspace





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Defamation – How to Get Out of Trouble

Defences

1. Truth – works every time!
2. Absolute Privilege – statements made in Court or in Legislature – politicians' debates
3. Qualified Privilege – job duties
4. Fair Comment – public criticism
5. Responsible communication on "matters of public importance"



Other Business Torts

- Inducing breach of contract
  - "head-hunting" enticing employee to quit…
- Interference with economic relations
  - e.g. $$ kickbacks to staff to get them to use a new supplier instead of the existing one, bribery
- Conspiracy

e.g. when two or more people act together to do the above



- Intimidation
  - e.g. threat of violence or illegal strike…
- Intentional infliction of mental suffering
  - e.g. harassment associated with wrongful dismissal action
- Deceit (civil fraud) – fraudulent & intentionally misleading of another person, causing damage

Other Business **Torts continued**

- Trespass to chattels
  - deliberate damage to stuff
  - kick the door of my car

Conversion
  - deliberate appropriating goods of another; wrongful taking
  - borrow my lawn-mower & sell it – includes theft

Detinue
  - wrongful keeping
  - borrow my lawn-mower with permission but then refuse to return it.

Injurious falsehood

-product defamation;

- telling lies maliciously and without just cause about a product or a business that cause harm

- the “chocolate milk tort”….

- Passing off action improper use of trademark ….@ C/L

Passing off





Privacy – “Intrusion Upon Seclusion”…

- not yet firmly established
- Privacy protection provided by statute law
- Invasion of a person’s privacy can be physical intrusion, surveillance, misuse of a name or image
- Can also be access to information
- *Personal Information Protection and Electronic Documents Act (federal)*
- Regulates collection and use of private information
- Provides a model code
- Personal Information Protection Act (Provincial)
- Privacy Act (BC) s3: cannot use someone’s portrait for commercial purposes

A Note about Tort & Loss

- Tort law is designed to provide $$$ compensation for injury or damages suffered.
- As of 2026 the maximum amount for pain and suffering in Canada is approximately $470,000.

- In rare exceptions such as with the tort of trespass to land, or defamation, or battery, the plaintiff does have, in theory, a cause of action, even when no loss or damage has occurred.